Chapter-wise Detailed Notes — Judicial review and judicial activism

Indian Government & Politics · Unit 4 · Chapter Judicial review and judicial activism

Assam University · BA FYUGP / NEP 2020 · Semester 1

Chapter Study Notes

Learning focus

Judicial review is the power of courts to assess whether laws and executive actions comply with the Constitution.

1. Judicial activism is a contested description of a more interventionist judicial approach, sometimes associated with expansive interpretation or public-interest litigation.

2. Judicial review is a constitutional function; activism is an evaluative label used in debate and does not have one universally agreed definition.

3. Supporters of intervention point to rights enforcement, governmental inaction and remedies for marginalised groups. Critics raise concerns about institutional competence, separation of powers and democratic accountability.

4. A balanced answer distinguishes constitutional authority from questions about the appropriate scope and style of judicial intervention.

Revision checklist

■ Can I define the key concept in my own words?

■ Can I explain its main features and distinguish it from related concepts?

■ Can I support an argument with a relevant example, thinker or constitutional provision?

■ Can I discuss at least one limitation or counterargument?